▼ VIEWPOINT

THE HANGING JUDGES IN DHAKA

India has responded to Hasina's death sentence with strategic patience. It ultimately hopes to repair ties with Bangladesh



BY PINAK RANJAN CHAKRAVARTY

The death sentence passed by Bangladesh's International Crimes Tribunal (ICT) on Sheikh Hasina, the ousted prime minister of Bangladesh, was not unexpected. She was found guilty on several counts, including mass murder. The tribunal also ordered that the state seize Hasina's assets. Her right to appeal is conditional on her voluntary return and arrest within 30 days, failing which she will be declared a fugitive. Will Hasina walk to the gallows? Unlikely. It is inconceivable that India will hand over Hasina to face certain death. The bilateral extradition treaty has explicit clauses exempting extradition for "an offence of a political character" [Article 6]. India's decision will be watched avidly.

The ICT's legislative mandate was to try the war criminals of 1971. Its jurisdiction was altered through an ordinance, making the changes null and void. The legal process was riddled with bias. Hasina was not permitted to choose her defence lawyers and partisan judges were appointed. The verdict is politically motivated. From the very beginning, the trial seemed contrived.

Earlier, Supreme Court judges were forced to resign under threats to their lives soon after Hasina left for India. Judges owing allegiance to the Jamaat-e-Islami (JeI), which organised the agitation, forced the interim government (IG) to appoint judges affiliated to it. The JeI is well known for its pro-Pakistan ideology. It was a collaborator of the Pakistan Army in committing genocide during the bloody 1971 Liberation War which gave birth to Bangladesh.

The IG, headed by Prof. Muhammad Yunus, lacks constitutional legitimacy. The parliament and the constitution are both in suspended animation. All these factors have raised serious questions about the validity of the judgment. The IG stakeholders all share a visceral hatred for Hasina and her Awami League (AL) party. The JeI was seething for revenge because the ICT had sent to the gallows several of its leaders convicted of war crimes. The JeI's hand behind the death sentence is obvious. Yunus, too, holds a deep grudge against Hasina because her government had filed cases, charging him with tax evasion and money laundering for his microfinance and commercial ventures. Yunus has had political ambition after he was awarded the Nobel Peace Prize in 2006.



Illustration by RAJ VERMA

HASINA WAS NOT PERMITTED TO CHOOSE DEFENCE LAWYERS. THE VERDICT BY PARTISAN JUDGES IS POLITICALLY MOTIVATED

Dhaka has demanded that India hand over Hasina. India has not responded to these requests. This issue will remain a thorn in ties. India's low-key response to the judgment is a significant aspect of its desire not to rock the boat and show strategic patience.

Relations continue to be frosty for a variety of other reasons, like Yusuf's intemperate statements against India's territorial integrity and the anti-India rhetoric of his Islamist supporters. India is conscious of the popular resentment against Hasina and hopes to go beyond this episode to repair ties, preferably with an elected government after a free, fair and inclusive election, scheduled to be held in February 2026.

Bangladesh faces an uncertain political future. The forces unleashed by the death sentence will take their toll on political stability. The shallow foundations of democracy, its institutions and fractious politics have taken their own toll on domestic politics for decades.

It seems that Bangladesh's Army, its strongest institution and a political player, has been coerced to abide by the decisions of the Yunus regime. Dhaka's increasing alignment with Islamabad does not augur well for bilateral ties. The bomb blast in Delhi has thrown up links with Pakistan and Bangladesh.

India's Neighbourhood First policy has faced periodic challenges. Bangladesh, an erstwhile stable partner, is now facing political uncertainty. Ties with the Maldives and Sri Lanka have been reset. A reset awaits with Nepal after the election. There is little hope of improving ties with a congenitally hostile Pakistan. Unfortunately, the intemperate if expected verdict of the ICT is likely to be another knotty complication in our regional relationships. ■

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